

# E8 FUNDING LLC EDUCATIONAL SIMULATION PARTICIPANT AGREEMENT

This Educational Simulation Participant Agreement ("**Agreement**", or "ESPA") is made and entered into by and between E8 Funding LLC and/or its affiliated companies, a Texas limited liability company with its principal office at 4101 McEwen Road, Suite 205, Dallas, Texas 75244 ("**E8**", "**Company**", "**we**", or "**us**"), and you, the individual participant executing this Agreement ("**Participant**", "**you**", or "**your**"). This Agreement governs your access to and use of the E8 proprietary simulation software platform and related services (collectively, the "**Platform**").

## 1. PURPOSE AND LEGAL CHARACTERIZATION

1.1. **Platform Classification and Intent.** The Platform provided by E8 is strictly and exclusively a Software-as-a-Service (SaaS) educational simulation platform. It is designed to emulate financial market conditions solely for the purpose of education, skills testing, data collection, and analytical modeling. The Platform is not a trading platform, financial instrument, investment vehicle, investment contract, or security as defined under the Securities Act of 1933, the Securities Exchange Act of 1934, or any applicable international securities laws.

1.2. **Securities Law Exclusion.** E8 affirms, and Participant expressly acknowledges and agrees, that the Platform has been structured, and shall be interpreted, construed, and used in a manner intended to ensure full compliance with and safe harbor under securities laws, including the Howey Test as established in SEC v. W.J. Howey Co., 328 U.S. 293 (1946). No element of the Platform constitutes or is intended to constitute an investment of money in a common enterprise with an expectation of profits derived solely or substantially from the efforts of others. All Rewards are discretionary and are not tied to any capital deployment or profit-sharing mechanism.

1.3. **Acknowledgment of Educational Purpose.** Participant affirms that their engagement with the Platform is solely for educational purposes and not for investment, speculation, or financial gain. Participant agrees not to represent, market, or misconstrue the Platform as offering investment opportunities, financial services, or securities.

1.4. **CFTC and Commodities Law Compliance.** The Platform is not a commodity pool, commodity trading advisor (CTA), futures commission merchant (FCM), or introducing broker (IB) as defined under the Commodity Exchange Act and enforced by the Commodity Futures Trading Commission (CFTC). It does not facilitate, promote, or solicit participation in any real-world trading, margin account, swap, leveraged forex, or futures transaction.

To the extent the Platform could be construed as implicating commodities regulation, E8 expressly claims exemption under CFTC Rule 4.13(a)(1) and/or Rule 4.5. E8 does not accept or deploy participant funds, does not engage in speculative trading, and does not operate on or through regulated futures exchanges. No actual trades, solicitations, or commodity positions occur through the Platform.

Participant acknowledges and agrees that the Platform is strictly limited to closed-loop simulations for the purpose of educational modeling, behavioral testing, and data analytics. All performance incentives are purely discretionary and based on internal criteria that do not correspond to market returns or capital exposure. Accordingly, no portion of the Platform shall be interpreted to fall under the regulatory purview of the SEC, CFTC, NFA, or their international equivalents.

**1.5. Hypothetical Performance Disclosure – CFTC Rule 4.41.** Simulated or hypothetical trading results presented on or through the Platform have inherent limitations and are subject to mandatory regulatory disclosure under CFTC Rule 4.41. Specifically:

- Such results do not reflect actual trading activity or execution under live market conditions;
- They may understate or overstate the impact of real-world variables such as liquidity, slippage, or trade execution risk;
- They are constructed with the benefit of hindsight and may reflect optimized outcomes not achievable in actual market environments.

**No representation is being made that any account will or is likely to achieve profits or losses similar to those illustrated, simulated, or referenced.** All performance results shown are purely hypothetical and are provided solely for educational, illustrative, and evaluative purposes. They shall not be construed as guarantees, predictions, or inducements related to real-world trading

## **2. DEFINITIONS**

**2.1. Simulation Environment.** “Simulation Environment” means the proprietary software interface provided by E8 that emulates real-time market data and allows simulated trade execution for educational and evaluative purposes.

**2.2. Evaluation Modules.** “Evaluation Modules” means the structured phases (Phase 1, Phase 2, and Phase 3) through which Participants are assessed based on behavior, consistency, and risk management within the Simulation Environment.

**2.3. Reward.** “Reward” means the a performance-based discretionary monetary or other reward offered solely at E8's election and subject to the successful completion of Evaluation Modules, internal review, and data acquisition processes.

**2.4. Data.** “Data” means all activity logs, behavioral patterns, trade executions, decisions, timing, outcomes, strategy applications, and other data points generated by Participant through interaction with the Platform.

**2.5. Payout Tier.** “Payout Tier” is the selected licensing path that determines the nature of Data rights and Reward structure (e.g., 100% Payout Tier denotes exclusive ownership by E8; 80% or 90% Payout Tier permits limited co-access subject to restrictions).

### 3. PROGRAM STRUCTURE

3.1. **Evaluation Pathways**. Participants may engage through one of three progressive structures: (a) Phase 1: Three-step entry, optimal for beginners; (b) Phase 2: Intermediate two-step process; (c) Phase 3: Advanced single-phase path.

3.2. **Reward Framework and Non-Entitlement**. Participant acknowledges that completion of Evaluation Modules, even with apparent success, does not create any entitlement or obligation on the part of E8 to issue a Reward. The issuance of a Reward is contingent upon E8's express and discretionary election to acquire the Participant's Data pursuant to an internal review of its value, replicability, behavioral indicators, and alignment with E8's strategic objectives.

3.3. **Data Rights and Licensing**. Participant agrees that Data produced under the 100% Payout Tier constitutes a work-for-hire and shall be the sole and exclusive property of E8. In other Payout Tiers, limited co-access may be granted for active participants only, without residual claims post-termination.

### 4. DATA OWNERSHIP AND LICENSE

4.1. **Intellectual Property Rights in Data**. All Data generated through the Platform shall be licensed to E8 as a perpetual, irrevocable, exclusive, worldwide, royalty-free, fully sublicensable right to use, analyze, adapt, monetize, distribute, publish, or otherwise exploit in any format, platform, or derivative form.

4.2. **Discretionary Reward Denial**. E8 reserves the unrestricted right to refuse to issue any Reward, even where all Evaluation Modules are completed, without further explanation. Simulated profits and activity do not confer legal claim, monetary entitlement, or valuation of performance.

### 5. INTELLECTUAL PROPERTY PROTECTIONS

5.1. **Ownership**. All software, code, documentation, graphics, dashboards, analytics, and associated materials on the Platform are the sole and exclusive property of E8 or its licensors.

5.2. **Derivative Insights**. All analytical outputs, modeling, and intellectual capital derived from Participant's Data or use of the Platform shall be deemed the proprietary property of E8.

5.3. **Remedies**. E8 shall be entitled to injunctive relief, specific performance, and recovery of all attorneys' fees and enforcement costs in the event of IP infringement.

## 6. CONFIDENTIALITY

6.1. **Non-Public Materials**. Participant shall maintain the confidentiality of all non-public materials, business processes, data handling procedures, and trade secrets learned through access to the Platform.

6.2. **Duration**. This confidentiality obligation shall survive for a period of five (5) years following the termination of this Agreement.

## 7. COMPLIANCE AND LEGAL REVIEW

7.1. **Legal Counsel Confirmation**. Participant acknowledges and agrees that they have had the opportunity to consult with independent legal counsel regarding the terms, implications, and legal consequences of entering into this Agreement, and that their execution hereof is made knowingly, voluntarily, and without duress or reliance upon any representations other than those expressly set forth herein.

7.2. **International Compliance**. Participant is solely responsible for complying with all applicable laws, regulations, and licensing requirements in their jurisdiction, including but not limited to taxation, reporting, and regulatory disclosure requirements. E8 makes no representations or warranties regarding the legality of participation in the Platform under any specific national or international law.

7.3. **Know Your Customer (KYC) and Anti-Money Laundering (AML)**. Participant shall, upon request, provide valid, current, government-issued photo identification and proof of address within twenty-four (24) hours. Failure to comply may result in suspension or termination of access to the Platform without refund.

## 8. COMMUNICATIONS AND DATA RIGHTS

8.1. **Account Holder Certification**. Participant affirms and certifies that they are the sole and exclusive user of their E8 Platform account and shall not permit any other individual or third party to access, use, or operate under their login credentials. Any breach of this clause shall be deemed a material violation of this Agreement and may result in immediate termination.

8.2. **Marketing and Operational Consent**. By entering into this Agreement, Participant grants express written consent for E8 to contact them via email, SMS, phone call, and other electronic messaging systems for purposes including, but not limited to, account notifications, marketing campaigns, promotions, legal disclosures, and system alerts. Such consent is deemed valid under the United States CAN-SPAM Act, the European Union's General Data Protection Regulation (GDPR), the United Kingdom's Privacy and Electronic Communications Regulations (PECR), and other applicable data protection frameworks. This consent may be revoked by Participant at any time.

## 9. TERMINATION AND DORMANCY

9.1. **Participant-Initiated Cancellation.** Participant may terminate this Agreement and cancel their participation in the Platform within three (3) calendar days of execution by providing written notice to E8's support department. Refund eligibility, if any, shall be governed strictly by the applicable refund policy in effect at the time of cancellation.

9.2. **E8-Initiated Termination.** E8 may suspend or terminate a Participant's access to the Platform, immediately and without refund, upon a finding of: (a) material breach of any provision of this Agreement; (b) fraudulent or abusive conduct; (c) reputational harm to E8; (d) failure to comply with applicable KYC/AML obligations; (e) inactivity as defined herein; or (f) for any reason as determined by E8 in its sole discretion.

9.3. **Dormant Accounts.** Any account that does not execute a simulated trade or engage meaningfully with the Platform for a period of thirty (30) consecutive calendar days shall be deemed "Dormant" and may be automatically suspended upon notice to you and may be terminated at any time following notice. Upon termination, all access, data retrieval rights, and participation privileges shall be revoked.

## 10. PLATFORM INTEGRITY AND COMPLIANCE ENFORCEMENT

10.1. **Risk Review.** All Participant activity on the Platform shall be subject to monitoring and review by E8's Risk and Compliance Department. E8 reserves the right to audit, investigate, and assess any simulation behavior for potential abuse, misconduct, or misalignment with the educational nature of the Platform.

10.2. **Prohibited Activities.** Participant expressly agrees to refrain from the following conduct:

10.3. (a) Exploiting loopholes, latency gaps, or systemic anomalies in the simulation engine; (b) Engaging in arbitrage, spoofing, layering, or high-frequency trade simulation that is misaligned with real-world feasibility; (c) Deploying automated bots, scripts, or third-party software to manipulate Platform functions; (d) Attempting to "game" evaluation rules or parameters in a manner inconsistent with good faith educational intent. Additionally, Participant shall not reverse engineer, decompile, reproduce, modify, distribute, or republish any part of the Platform without prior written consent of E8.

10.4. **Enforcement Remedies.** E8 reserves the unilateral and unrestricted right, without advance notice, to: (a) Delete or reverse any simulated trade; (b) Reset the Participant's account to initial status; (c) Deny or revoke any issued or pending Reward; (d) Refund any educational fee at E8's sole discretion; (e) Permanently ban Participant from any future access to E8 products or services.

10.5. **Finality of Determinations.** All determinations made by E8's Risk, Compliance, or Executive team with respect to any of the foregoing actions shall be final, binding, and non-reviewable. Participants waive any right to administrative or judicial review and expressly agree that such determinations are not subject to challenge via arbitration or litigation.

## 11. INDEMNIFICATION

11.1. **Scope of Indemnity.** To the fullest extent permitted by applicable law, Participant agrees to defend, indemnify, and hold harmless E8, its parent company, affiliates, subsidiaries, officers, directors, employees, contractors, agents, licensors, successors, and assigns (collectively, the "Indemnified Parties") from and against any and all third-party claims, actions, proceedings, damages, losses, liabilities, penalties, fines, costs, and expenses (including but not limited to reasonable attorneys' fees, expert witness fees, litigation expenses, and advance reimbursement obligations) arising from or related to: (a) Participant's breach of this Agreement; (b) Violation of applicable law, regulation, or regulatory obligation; (c) Misuse or unauthorized use of the Platform; (d) Disputes initiated by or involving third parties based on Participant's conduct; (e) Any act of fraud, misrepresentation, or negligence.

11.2. **Survival.** The indemnification obligations set forth herein shall survive the termination or expiration of this Agreement and remain in effect indefinitely to the extent permitted by law.

## 12. LIMITATION OF LIABILITY

12.1. Limitation of Liability. TO THE FULLEST EXTENT PERMITTED BY LAW, IN NO EVENT SHALL E8 OR ITS AFFILIATES, OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, LICENSORS, SERVICE PROVIDERS, OR CONTRACTORS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, DATA, REVENUE, GOODWILL, OR BUSINESS INTERRUPTION, EVEN IF E8 HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES ARISING OUT OF OR RELATED TO: (A) YOUR USE OR INABILITY TO USE THE PLATFORM; (B) ERRORS, OMISSIONS, DELAYS, OR DATA LOSS IN THE PLATFORM OR ITS CONTENT; (C) SIMULATED OUTCOMES, REWARD EXPECTATIONS, OR EVALUATION RESULTS; (D) SUSPENSION OR TERMINATION OF YOUR ACCESS; (E) ANY UNAUTHORIZED ACCESS OR USE OF THE PLATFORM BY A THIRD PARTY.

12.2. Liability Cap. E8'S TOTAL AGGREGATE LIABILITY FOR ANY CLAIM UNDER THESE TERMS OR RELATED TO YOUR USE OF THE PLATFORM SHALL NOT EXCEED THE AMOUNT PAID BY YOU TO E8 IN THE SIX (6) MONTHS PRECEDING THE CLAIM. THIS LIMITATION SHALL APPLY REGARDLESS OF THE FORM OF ACTION, WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE. SOME JURISDICTIONS DO NOT ALLOW CERTAIN EXCLUSIONS OR LIMITATIONS OF LIABILITY; IN SUCH CASES, LIABILITY SHALL BE LIMITED TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

### 13. DISPUTE RESOLUTION

13.1. **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, United States of America, without regard to its conflict of law principles.

13.2. **Arbitration Agreement.** Any dispute, claim, or controversy arising out of or relating to this Agreement, including its formation, interpretation, breach, or enforcement, shall be resolved exclusively through binding arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules, with a single arbitrator selected by mutual agreement. If the parties cannot agree on an arbitrator, one shall be appointed by the AAA. Venue for all arbitration proceedings shall be Dallas County, Texas.

13.3. **Appeal Process.** An optional appeal may be filed to a three-arbitrator panel for review of an initial award, subject to the International Centre for Dispute Resolution (ICDR) appellate rules, at the expense of the party filing the appeal.

13.4. **Arbitration Opt-Out.** You can elect to reject the agreement to arbitrate by sending us a written opt-out notice within thirty (30) days following the date you first agree to these terms by email at Support@E8Funding.com. To be effective, the opt-out notice must contain your name, address, and signature. If you opt-out of the agreement to arbitrate, all other parts of these Terms will continue to apply to you. Opting out of this agreement to arbitrate has no effect on any previous, other, or future arbitration agreements that you may have with us.

13.5. **Class Action and Jury Trial Waiver.** Participant irrevocably waives any and all rights to: (a) Trial by jury in any legal proceeding; (b) Participate in any class action, class arbitration, or other representative proceeding against E8 or any Indemnified Party.

13.6. **Delay Rights and Stay of Enforcement.** E8 reserves the right to stay enforcement of arbitration proceedings pending its internal or legal review of the matter. No interim measures shall proceed without express written authorization.

### 14. GENERAL PROVISIONS

14.1. **Entire Agreement.** This Agreement constitutes the full and complete understanding between the parties concerning the subject matter hereof and supersedes all prior and contemporaneous representations, negotiations, or agreements, whether written or oral.

14.2. **Severability.** If any provision of this Agreement is held to be invalid, illegal, or unenforceable in any respect, such provision shall be enforced to the fullest extent permissible and the remainder of the Agreement shall remain in full force and effect.

14.3. **Assignment.** Participant shall not assign, delegate, or transfer this Agreement or any rights or obligations hereunder without E8's prior written consent. E8 may assign or transfer this Agreement freely and without restriction.

14.4. **Execution.** This Agreement may be executed electronically and in counterparts, each of which shall be deemed an original and together constitute a single instrument.

14.5. **Governing Language**. This Agreement is drafted in English. If translated into another language, the English version shall control in the event of any conflict or ambiguity.

14.6. **Third-Party Beneficiaries**. This Agreement is intended to benefit and protect E8's officers, agents, contractors, licensors, affiliates, data vendors, and service providers, each of whom shall be deemed an express third-party beneficiary with full enforcement rights.

14.7. **Force Majeure**. E8 shall not be held liable for any failure or delay in performance due to events beyond its reasonable control, including but not limited to natural disasters, cyberattacks, market disruptions, governmental actions, acts of war or terrorism, pandemics, technical failures, or interruptions in data feed services.

## 15. INCORPORATION OF TERMS OF SERVICE

This Educational Simulation Participant Agreement (“Agreement”) is the governing contract between Participant and E8 Funding LLC and/or its affiliated companies. The E8 Terms and Conditions (“Terms”), as published at <https://e8markets.com/e8-markets-terms-and-conditions> and updated from time to time, are hereby incorporated by reference to supplement operational, technical, and community-driven aspects of the Platform.

In the event of any conflict or inconsistency between the Terms and this Agreement, the provisions of this Agreement shall govern and control.

Participant affirms they have reviewed and accepted the current Terms and understands that changes may be made periodically. Continued use of the Platform constitutes agreement to any such changes.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date set forth below.

E8 Funding LLC and/or its affiliated companies

By: Dylan Elchami, CEO

Signature



Date: 07/28/2026

Title: PARTICIPANT

By: Maximilian Han San Kho

Signature



Date: 07/28/2026

DigiSigner Document ID: 5bf5793f-9e3f-46b3-bff3-cab1e5bb1035

## Signer

Email: max.kho@web.de  
IP Address: 188.101.171.177

## Signature



| Event            | User                            | Time                     | IP Address      |
|------------------|---------------------------------|--------------------------|-----------------|
| Send for signing | externalplatforms@e8markets.com | 07/28/2026 1:38:02PM EDT | 46.28.108.38    |
| Open document    | max.kho@web.de                  | 07/28/2026 1:38:55PM EDT | 188.101.171.177 |
| Sign document    | max.kho@web.de                  | 07/28/2026 1:39:05PM EDT | 188.101.171.177 |
| Close document   | max.kho@web.de                  | 07/28/2026 1:39:05PM EDT | 188.101.171.177 |